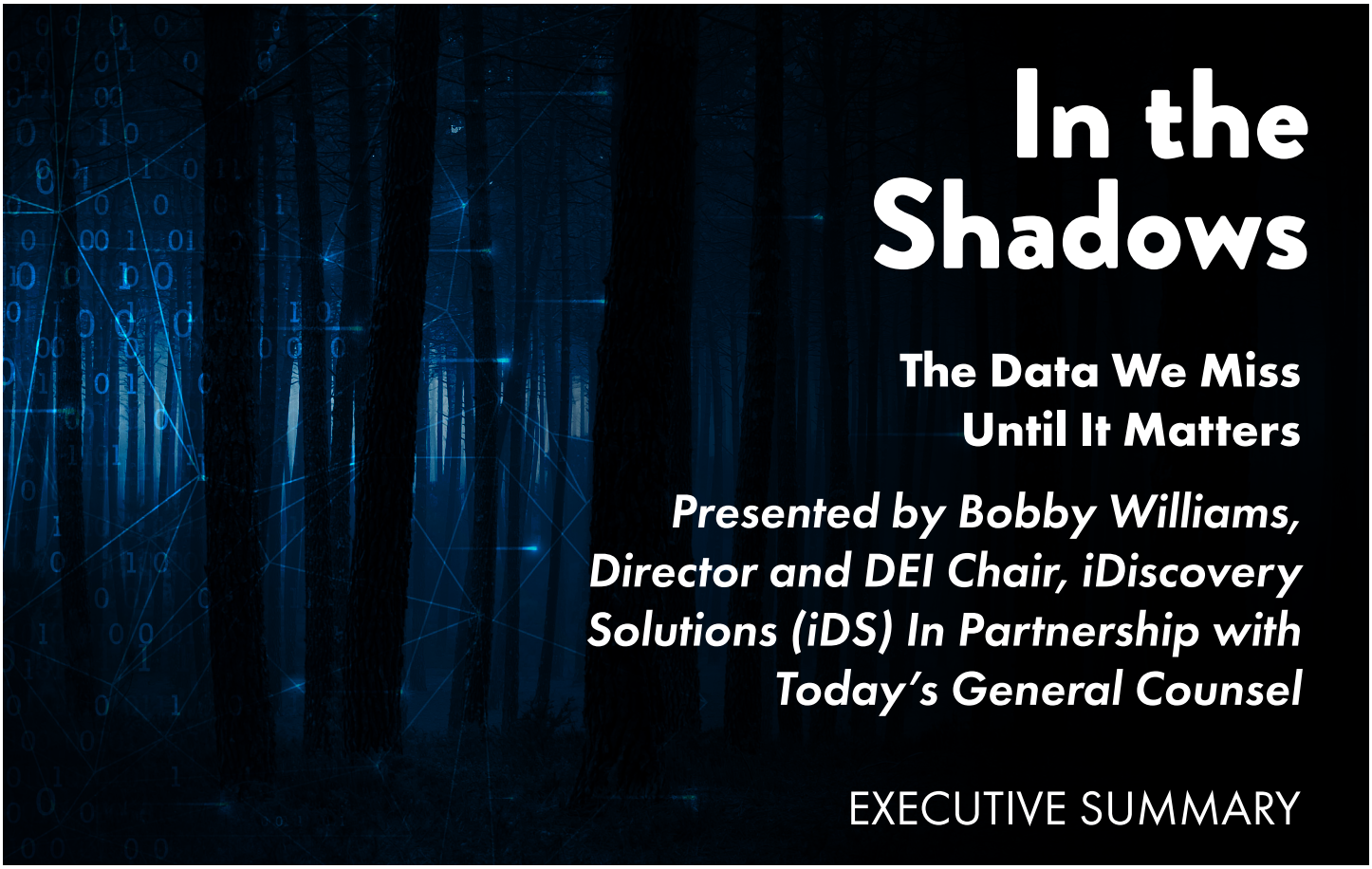


In the Shadows

The Data We Miss Until It Matters

Presented by Bobby Williams, Director and DEI Chair, iDiscovery Solutions (iDS) In Partnership with Today's General Counsel

EXECUTIVE SUMMARY

Every dispute, investigation, and compliance matter has data at its center. Timelines exist when patterns emerge. Risk surfaces when records are examined. But none of it resolves uncertainty on its own. The digital evidence has to be found, preserved, and interpreted before it can be used.

Most organizations discover too late that the records they needed were never retained, the tools their teams were using were never approved, or the evidence they relied on was never properly interrogated. The data was there. The window to act on it was not.

In this webinar, Bobby Williams, Director and DEI Chair at iDiscovery Solutions, draws on nearly 25 years of digital forensics, investigations, and expert testimony to deliver five practical frameworks for identifying and managing what lives in the shadows of enterprise data before a dispute, an audit, or an investigation forces it into the light. The session was presented in partnership with Today's General Counsel and is designed for legal professionals, compliance leaders, and in-house counsel who need proactive strategies, not just reactive responses.

iDS™
iDiscovery Solutions

Content

The Central Premise 3

Framework 1 4

Framework 2 5

Framework 3 6

Framework 4 7

Framework 5 8

How the Frameworks Connect 9

Key Takeaways 10

Watch the full webinar.

CLICK HERE TO VIEW

The Central Premise

Legal professionals are trained to ask questions. That skill is exactly what is needed to close the gap between what digital evidence shows, what it does not show, and what it means for strategy. But even the most experienced practitioners encounter moments where something in the evidence does not add up, and the instinct is to move on rather than look closer. That instinct is where organizational risk takes root.

The unknown makes us uncomfortable. When we encounter something we cannot immediately explain, our default is avoidance. We tell ourselves it is probably fine and hope it never becomes something bigger. In an enterprise data context, that pattern has consequences that compound over time.

Risks and damage do not always come from intentional misconduct. They come equally from the things that quietly live in the shadows: records rolling off systems on default settings, tools running without enterprise approval, evidence no one thought to question, encryption keys stored in ways no one can recover. These things remain hidden until a lawsuit, a resignation, or a formal investigation forces them into view.

The goal of this session is not to turn attendees into technology experts. It is to give decision-makers the frameworks to understand what their data actually shows, what it does not, and what it means for their strategy. That starts with knowing what to look for and having the discipline to look closer when something feels off. Curiosity over avoidance is the foundation of all five frameworks.

Framework 1
Hidden Gems

The principle behind Hidden Gems is straightforward: have better control over the digital artifacts your organization generates so they are available when you need them.

In practice, critical records including system logs, access histories, and communication metadata roll off corporate systems automatically, often within 60 to 90 days of creation. In some environments the default is 180 days. Investigations and discovery requests, by contrast, frequently arrive 12 to 18 months after the triggering incident. The gap between those two timelines is where evidence disappears, not because of bad intent, but because of default settings no one reviewed.

The framework moves through six steps: identify the artifacts that answer investigative questions; map current retention settings across systems; evaluate those settings against the actual timeline of audits and investigations; govern by updating policies and documenting the rationale; execute the changes; and audit regularly to verify the protocol is holding.

Bobby notes that this is not paranoia. After nearly 25 years in this industry, he considers it a guarantee that every organization will need this data at some point. The question is whether it will be there.

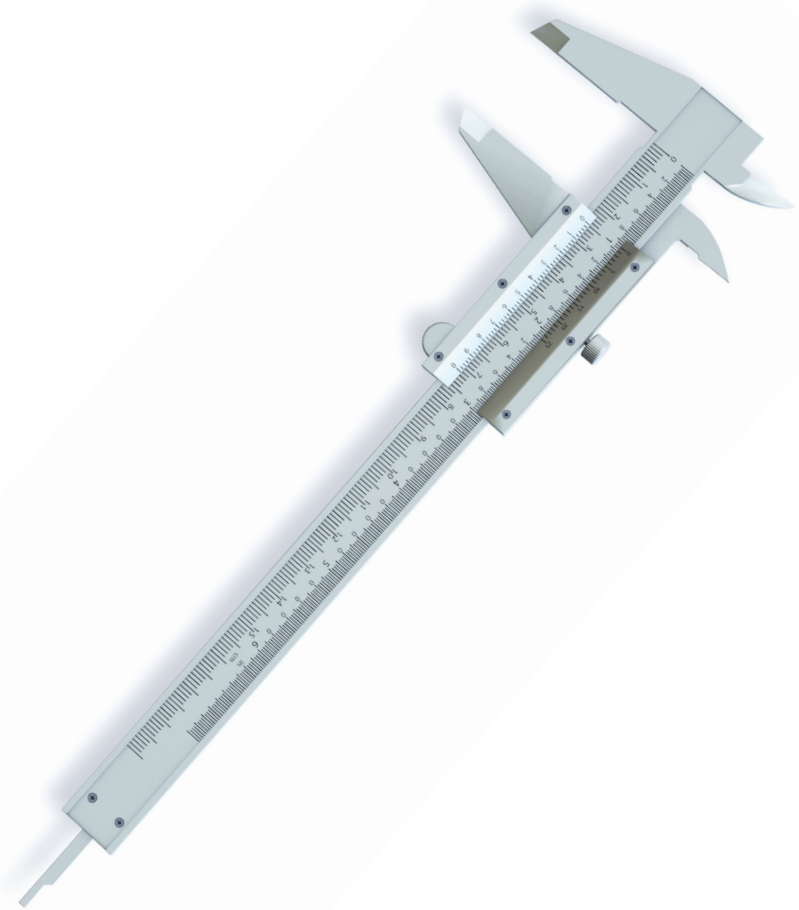


Framework 2
Secret Helpers

Shadow AI, specifically the use of AI tools not approved by the enterprise, means that organizational data and systems are being exposed to tools the enterprise did not vet and may not know exist. The risk profile is the same as any other unauthorized tool category. The difference is speed and scale.

This is a phenomenon that has always existed in enterprise environments. Employees have always used unofficial tools to get work done faster. Democratized AI has accelerated the problem significantly. But the framework is not punitive. The goal is to understand what tools are being used, by which teams and workflows, and what data is being exposed, not to discipline the people using them. Someone using an unauthorized tool may have found a genuine efficiency gain the organization could authorize. That cannot be known without first learning what it is.

The protocol moves through four phases: discover what tools are in use by analyzing system artifacts; assess the teams, workflows, and data involved; govern by developing policies that authorize safe tools, address risky ones, and capture legitimate productivity gains; and monitor continuously as the landscape evolves.



Framework 3
The R.E.D. Flags Framework

In an era of accessible deepfake technology and generative AI, the assumption that evidence is authentic is no longer a safe default. Falsified text messages, fabricated emails, manipulated images, and backdated documents are not hypothetical risks. They are a documented reality across investigations in legal, insurance, and compliance contexts.

The R.E.D. Flags Framework provides a consistent protocol for interrogating every piece of evidence received. Three questions, applied every time.

R - Rare. Is this a single piece of evidence that conveniently resolves everything in the case? Evidence that perfectly solves a matter is statistically unusual. When it appears, it warrants scrutiny.



E - Exported. Is the evidence in a derivative or exported format rather than its original native format? A produced email in an unexpected file format, a PDF with unusual creation metadata, a document whose author field points to a website rather than a person: these are indicators worth examining.

D - Dramatic. Is the story of how this evidence came to exist unnecessarily complicated? Is there drama around why the original is unavailable, why a qualified professional could not collect it, why the chain of custody is difficult to explain?

These questions do not require technical expertise to ask. They require the habit of asking them. The posture is no longer trust but verify. Democratized AI has moved investigations into a verify-first world. That posture applies not only to opposing party evidence but to materials provided by your own clients.

Framework 4
Where Are My Keys?

Skilled, hardworking technology teams are consistently busy. When they migrate data or update systems, they sometimes miss a critical step: retaining access to encrypted data after the migration is complete.

A device or dataset that is encrypted and whose decryption key no longer exists is, in practical terms, inaccessible. The data is there. It cannot be used.

The Where Are My Keys framework treats encryption key management and access succession as a continuity and investigation-readiness issue, not just an IT security task. The protocol involves recording all systems and data sources that use encryption or multi-factor authentication; documenting who holds access and designating successors as a form of succession planning; building a consistent offboarding protocol so access credentials are captured when team members depart; and regularly drilling the process to verify that access can actually be restored when needed.

The drills are not optional. An academic plan that has never been tested does not reveal its gaps until urgency strikes. Practicing the protocol is how organizations find the holes before they matter.



Framework 5
Data Detox

Data that no longer serves a purpose is not neutral. It bloats storage costs, expands litigation exposure, and creates risk that accumulates quietly until something forces it into view.

The framework is a discipline of vetting the data on your systems in order to purge what is no longer needed, because purging the data purges the risk. The vetting starts with questions: what data do we have, what purpose does it serve, and who is responsible for it? Three considerations govern what stays. Some data carries a legal retention requirement, as HIPAA dictates for certain health records. Where no law applies, an industry standard may set the expectation. Beyond both, every category of data has a genuine useful life. Data under legal hold stays until the hold lifts; everything else is categorized as keep or purge.

The purge follows a clinical sequence: diagnose what data is redundant, obsolete, or trivial, and find the R.O.T. Quarantine flagged data in read-only, low-tier storage for 30 to 60 days to confirm no one needs it, then delete it surgically. Maintenance protocols are the follow-up visits that keep toxic buildup from returning. Executed consistently and documented as an ordinary business function, the cycle is also its own defense: a purge run in compliance with legal and industry retention requirements leaves little room for a spoliation claim to stand on.

There is a direct relationship between Data Detox and the Hidden Gems framework. The savings from removing legacy data that should not be retained can offset the cost of extending retention on the records that genuinely matter.

How the Frameworks Connect

Each framework is designed to stand alone. Together, they address the full landscape of enterprise data risk.

Hidden Gems informs the data map needed for a Detox. Secret Helpers surfaces system artifacts that strengthen R.E.D. analysis. Where Are My Keys ensures access to what Hidden Gems preserves. A disciplined Detox creates the clean environment that makes all four other frameworks easier to execute.

The animating principle across all five is the same: curiosity over avoidance. Start with the questions. Do not wait for a dispute to find out what is living in the shadows.



Key Takeaways

Default retention settings are not malicious. They are simply not designed with investigations in mind. The Hidden Gems framework exists to close the gap between when data disappears and when it is needed.

Shadow AI is a symptom of a productivity gap, not a discipline problem. Organizations that respond with education and policy capture efficiency gains while reducing exposure.

The R.E.D. Flags Framework is a three-question habit. Rare. Exported. Dramatic. Applied consistently, it surfaces evidence integrity issues before they corrupt strategy or result in sanctions.

Access to encrypted data is not guaranteed without planning. Succession planning for encryption keys and access credentials is a continuity requirement.

Holding data beyond its useful life is a cost and a liability. A defensible, consistent data purge cycle is a form of risk management.

These frameworks are connected. The organizations that build them together will be better positioned to control outcomes when the stakes are highest.

Watch the full webinar.

CLICK HERE TO VIEW

iDiscovery Solutions

Who?

Bobby Williams, Director and DEI Chair, iDiscovery Solutions (iDS)
In Partnership with Today's General Counsel

What?

In the Shadows: The Data We Miss Until It Matters

When?

Available On-Demand

Summary:

- Review data retention before evidence disappears
- Monitor and govern unauthorized AI tool usage
- Verify digital evidence before relying on it
- Protect access to encryption keys and credentials
- Use AI responsibly with defensible processes

Trusted by leading law firms and Fortune 500 companies from around the world, iDS stands at the intersection of legal acumen and cutting-edge technology. Here, we don't just manage data; we transform it into actionable insights, ensuring compliance, streamlining litigation, and safeguarding your reputation. When the stakes are high and the data vast, industry leaders turn to iDS for consultative expertise, customized solutions, and an efficient process built on accountability, confidence, and trust.

Visit iDSinc.com to Learn More